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File No.: EXP202305884

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On November 4, 2022, the Director of the Spanish Agency for Data Protection issued a resolution in the sanctioning procedure with file number EXP202105669, conducted against the DEPARTMENT OF EDUCATION, CULTURE AND SPORTS OF THE GOVERNMENT OF ARAGÓN (hereinafter, the respondent).

The resolution contains the following proven facts:

“FIRST: It is recorded that on November 8, 2021, the complainant filed a complaint with the Spanish Agency for Data Protection, as the respondent revealed personal information and data to third parties without the express consent of the data subjects.

SECOND: It is verified that this concerns an email in which an Excel sheet is attached, displaying the data of more than 200 employees, revealing to third parties their names and surnames, ID number, job position, and an additional cell to indicate whether they wished to undergo a medical examination.

THIRD: The respondent states that it will proceed to review the adequacy of the procedure in accordance with the current regulations on the matter.”

In this resolution, in addition to sanctioning with a warning, the following measures were required:

“THIRD: TO REQUIRE the DEPARTMENT OF EDUCATION, CULTURE AND SPORTS to implement, within one month, the necessary corrective measures to adapt its actions to the regulations on personal data protection, to prevent similar events from occurring in the future, as well as to inform this Agency within the same period about the measures adopted.”

SECOND: The electronic notification of the resolution, which granted the respondent a period of one month to adopt the imposed measures, was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP). Since it was not collected by the responsible party within the period of availability, this notification was understood to be rejected in accordance with the provisions of Article 43.2 of the LPACAP on November 18, 2022, as recorded in the acknowledgment of receipt in the file.

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THIRD: After the indicated period elapsed without any written communication received by this Agency regarding the measures implemented by the respondent, they were again required to provide evidence within ten working days that they had adopted the appropriate corrective measures, in accordance with what was agreed in the aforementioned Resolution.

The notification of this requirement was not collected by the responsible party within the period of availability and expired on February 3, 2023, as recorded in the acknowledgment of receipt in the file.

FOURTH: On February 22, 2023, a new requirement was sent to the respondent, attaching a copy of the aforementioned Resolution, requesting that, within ten working days, they provide evidence to this Agency that they had adopted the corrective measures indicated therein.

This requirement was duly notified on February 28, 2023, as recorded in the acknowledgment of receipt in the file.

FIFTH: On February 24, 2023, with entry registration number REGAGE23e00011904245, a letter was received from the Ombudsman requesting information about the actions taken by the respondent to comply with the orders in the aforementioned resolution.

SIXTH: The respondent has not submitted a response to this Agency that proves compliance with the imposed measures within the granted deadlines.

SEVENTH: Against the aforementioned resolution, which requires the adoption of measures, no

ordinary administrative appeal can be made due to the expiration of the established deadlines for this purpose. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record that such an appeal has been filed or that a precautionary suspension of the resolution has been requested.

EIGHTH: On May 22, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate a sanctioning procedure against the respondent, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR).

NINTH: The notification of the aforementioned initiation agreement, which was registered for outgoing on May 23, 2023, with registration number REGAGE23s00032830862, was not collected by the respondent within the period of availability, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on June 3, 2023, as recorded in the acknowledgment of receipt in the file.

Although the notification was validly carried out by electronic means, the procedure was considered completed in accordance with the provisions of Article 41.5 of the LPACAP, the

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The initiation agreement was resent by postal mail and was collected by the respondent on June 26, 2023, as evidenced by the acknowledgment of receipt in the file.

TENTH: On July 3, 2023, the respondent submitted written allegations, registered with entry numbers REGAGE23e00044331819 and REGAGE23e00044358925, in which it states that, although it is true that the resolution of the sanctioning procedure of file EXP202105669 was received by the Technical General Secretariat of the respondent, it is also true that in the autonomous administration of Aragón, public officials and civil servants do not have a representative's signature that allows them to access electronic notifications addressed to the Government of Aragón or any of its departments or administrative units. Thus, it points out that, without prejudice to the legal obligation to comply with the resolution of the sanctioning file EXP202105669, there is no record in it of the notifications and requirements mentioned in the background of the initiation agreement of this new sanctioning file.

Furthermore, the respondent informs that access to the Government of Aragón's folder is only available from the Department of Finance and Public Administration of that Administration. In this regard, it indicates that the initiation agreement of the present file has been notified by means of a printed paper document, from which it states it can be inferred that this Agency is aware of the described technical impossibilities.

Regarding the actions taken in light of the resolution of the sanctioning procedure EXP202105669, the Technical General Secretariat of the respondent informs that it notified the sanction agreed upon in procedure EXP202105669 to the General Directorate of Personnel of its department, as it is the competent authority, by delegation, for the exercise of the powers attributed to that Technical General Secretariat in Decree 201/2018, of November 21, of the Government of Aragón, which approves the Regulation governing the System for the Prevention of Occupational Risks and Promotion of Health for the personnel of the Administration of the Autonomous Community of Aragón, concerning both non-teaching staff and non-university teaching staff assigned to the Department of Education, Culture, and Sports.

It details in its allegations that the resolution of November 13, 2020, of the Technical General Secretariat, by which powers in matters of non-teaching and non-university teaching staff are delegated, was published in the Official Bulletin of Aragón, number 231, of November 20, 2020.

Similarly, the request for information sent by the Ombudsman was also notified to the General Directorate of Personnel of the department.

Not obtaining a satisfactory response, it indicates that an initiative is taken from that Technical General Secretariat and the sanction imposed and the need to respond to the Ombudsman is communicated to the Occupational Risk Prevention and Health Promotion Service of the General Directorate of Public

Function and Quality of Services of the Department of Finance and Public Administration of the Government of Aragón.

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Furthermore, it is stated that the Technical General Secretariat considered that what occurred could happen in other departments and that the measures to be adopted as a result of the imposed sanction should be transversal to the entire autonomous administration.

It also mentions that, after informal conversations held by phone and email regarding the measures to be adopted, it was deemed appropriate to convene a meeting between the Technical General Secretariat and the Occupational Risk Prevention and Health Promotion Service of the General Directorate of Public Function and Quality of Services, which would allow for an analysis of the situation, the sanction, and the measures to be adopted. Personnel assigned to the Technical General Secretariat and personnel from the Occupational Risk Prevention and Health Promotion Service attended this meeting, as well as the Data Protection Delegates from the Government of Aragón, from the claimed party, and from the Department of Finance and Public Administration.

The claimed party specifies that in the meeting held on April 18 of this year, the following points were analyzed: the legal framework in which the claimed party carried out the actions sanctioned by the Spanish Agency for Data Protection; measures adopted by the autonomous administration to cease or correct the effects of the infringement; and an analysis of the progress of the measures that will be adopted in the medium and long term.

The claimed party indicates that, from the conclusions agreed upon by the two departments in the meeting, a report was made to the Ombudsman through a letter signed by its Technical General Secretariat on April 27, 2023, of which a copy is attached. In response to the previous, they state that the Ombudsman informed them that he had forwarded their letter to this Agency. The letter from the Ombudsman is also attached.

In light of the above, the claimed party presents the following allegations regarding the initiation agreement of the current sanctioning procedure:

On one hand, the claimed party points out that, although it was outside the one-month deadline, it has indeed taken measures, which are the ones described and already notified to the Ombudsman.

On the other hand, it understands that the sanctioning procedure has been initiated due to the consideration that the measures previously outlined are insufficient, after this Agency became aware of them through the Ombudsman. It informs that these measures have been adopted taking into account the applicable legal regime for that Public Administration in terms of risk prevention, as well as the Agreements adopted within the collective bargaining procedures. Furthermore, it considers that the aforementioned measures prevent the reoccurrence of the events that led to the sanctioning file EXP202105669.

For all the above reasons, the claimed party requests that its letter be admitted for processing and that the allegations contained therein be accepted, and that the resolution that concluded the sanctioning procedure EXP202105669 be considered fulfilled, leading to the archiving of the actions initiated within the file EXP202305884.

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ELEVENTH: On July 12, 2023, a proposal for resolution was made, proposing that the Director of the Spanish Agency for Data Protection declare that the accused party has infringed the provisions of Article 58.2 of the GDPR, an infringement classified under Article 83.6 of the GDPR. This proposal for resolution was duly notified to the accused party.

TWELFTH: On August 3, 2023, with entry registration number REGAGE23e00052955073, the

accused party submitted a written statement of allegations regarding the Proposal for resolution. The accused party points out that the proposal for resolution expressly states that this Agency acknowledges receipt of the communicated measures, without this declaration implying any pronouncement on their regularity or legality. Furthermore, it has received a written communication from the Director of the Spanish Agency for Data Protection indicating that such measures are considered insufficient. Therefore, it informs that it has submitted allegations regarding that communication, making known the adequacy of the agreed measures concerning the observation expressed, in order for the resolution of EXP202105669 regarding the measures to be adopted to be considered fulfilled.

Additionally, regarding the non-compliance consisting of the lack of notification to this Agency of the measures adopted relating to the Resolution of the sanctioning procedure EXP202105669, the accused party indicates the following:

That there has been no non-compliance regarding the lack of adoption of measures by this Department. These measures have not only been adopted but have also been effectively ensured to be measures to be complied with throughout the autonomous administration.

That the adopted measures have been notified to the Ombudsman, knowing that this Agency would be aware of that notification and its content.

That the lack of express notification to this Agency of those measures was due to an error, with no intention of lack of transparency or non-compliance, nor bad faith.

That, in the autonomous administration of Aragon, public officials and civil servants do not have an electronic representative card, making it entirely unfeasible for them to access notifications that are not received in the "physical" Public Registry of the Government of Aragon (REFGIA) or in the Electronic Registry of the Government of Aragon (REGA). Therefore, without questioning that such notifications may have been accepted by some instance, none of them have been accessed by any person from its Technical General Secretariat. Moreover, there are several procedures in which this Agency has been alerted to this circumstance. It adds that in response to each written communication or notification from this Agency directed through the means accessible to its officials, there has always been a response with a predisposition to comply with the current regulations.

That once the measures adopted became known to this Agency, it has continued to show itself proactive both in their adequacy to what has been observed by this Agency and in ensuring that the measures are adopted in the autonomous administration in general.

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That the proposed resolution submitted suggests the imposition of the sanction referring exclusively to Article 58.2, of which only the body is transcribed without distinguishing each of its sections, and Article 89.2 of the GDPR, which is transcribed without any consideration.

That it understands that the specific provision referred to in the proposal with reference to Article 58.2 of the GDPR is its section: i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this section, depending on the circumstances of each particular case.

Finally, the party being claimed requests that it be taken into consideration that at no time has there been any intention of non-compliance or bad faith on its part, that its intention has always been to comply with what was agreed upon by this Agency and consequently has acted in accordance with what it had effective knowledge of what this Agency agreed, as well as that the measures adopted in compliance with the resolution that concluded EXP202105669 comply with what is required and observed by this Agency and have been extended to all departments of the Administration of the Autonomous Community of Aragon, and that although there has been a formal non-compliance with the express notification to this Agency, there has never been an intention to conceal the measures adopted in order to comply with the aforementioned resolution, something that would have made no sense and that, if it were the case, would not have been notified to the Ombudsman.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in the present procedure,

PROVEN FACTS

FIRST: The resolution of the sanctioning procedure and the requirements for compliance with the measures imposed therein indicated in the first to fourth recitals were notified in accordance with the provisions of the LPACAP. Said resolution became firm and executive due to the passage of the deadlines provided for the filing of the appeals indicated therein.

SECOND: The party being claimed has not sent a response to this Agency that proves compliance with the measures imposed prior to the issuance of the agreement to initiate the present sanctioning procedure.

THIRD: The notification of the agreement to initiate the present sanctioning procedure was received by the party being claimed on June 26, 2023.

FOURTH: The party being claimed has submitted allegations to the agreement to initiate this sanctioning procedure as recorded in the tenth recital.

FIFTH: The notification of the proposed resolution of the present sanctioning procedure was received by the party being claimed on July 21, 2023.

SIXTH: The party being claimed has submitted allegations to the proposed resolution of this sanctioning procedure recorded in the twelfth recital.

LEGAL GROUNDS

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I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations to the initiation agreement

In response to the allegations presented by the entity being complained against, the following should be noted.

Regarding the technical impossibilities described for accessing electronic notifications, it is noted that on February 28, 2023, the entity being complained against received a request sent by postal notification, which included a copy of the Resolution of the sanctioning procedure with file number EXP202105669, requiring that, within ten working days, it prove to this Agency that it had adopted the corrective measures indicated therein. It is also reminded that the entity being complained against has the obligation to communicate through electronic means in compliance with Article 14.2 of the LPACAP, and it is an internal matter to ensure access to such notifications by authorized personnel. Although the entity being complained against provides a copy of the report it signed on April 27, 2023, and sent to the Ombudsman, it is noted that the aforementioned Resolution required both that the entity being complained against implement, within one month, the necessary corrective measures to adapt its actions to the personal data protection regulations, preventing similar events from occurring in the future, and that it inform this Agency within the same timeframe about the measures adopted. This Agency has not received any news regarding the measures adopted by the entity being complained against until the moment the allegations to the initiation Agreement of the present

sanctioning procedure were submitted.

Furthermore, in the letter from the Ombudsman provided, it is stated that the information given by the entity being complained against is incorporated into the file of that institution, whose conclusion and archiving will occur as soon as this Agency informs them about the suitability of the measures adopted. It is not indicated that it will be the Ombudsman who will inform this Agency, an obligation that falls on the entity being complained against.

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The communication of measures adopted during the instruction of this procedure does not affect the existence of the proven facts constituting an infringement.

As for the communicated measures, this Agency acknowledges receipt of them, without this declaration implying any pronouncement on the regularity or legality of the measures adopted.

It is warned about the provisions of Article 5.2 of the GDPR, which establishes the principle of proactive responsibility when it states that "The data controller shall be responsible for compliance with the provisions of Article 1 and able to demonstrate it."

This principle refers to the obligation that falls on the data controller not only to design, implement, and observe the appropriate legal, technical, and organizational measures so that data processing is in accordance with the regulations, but also to remain actively attentive throughout the entire lifecycle of the processing to ensure that such compliance is correct, being additionally able to demonstrate it.

III

Allegations to the Proposal for Resolution

In response to the allegations to the Proposal for Resolution of this file presented by the accused party, the following should be noted.

Regarding the letter from the Director of the Spanish Agency for Data Protection in which the agreed measures were considered insufficient and the subsequent communication made by the accused party regarding the adequacy of the agreed measures, it should be noted that this sanctioning procedure aims to determine whether the accused party failed to comply with the Resolution of file

EXP202105669 by not proving to this Agency the implementation of the corrective measures ordered therein, within the time given for their adequacy (which was reiterated on two occasions as noted in the background, before initiating this procedure). The determination of this infringement does not require a pronouncement on the scope of the measures communicated subsequently, which is verified within the framework of file EXP202105669 in which such measures were imposed, and in which the aforementioned letter was issued.

Furthermore, regarding the reason alleged to justify the lack of notification of the implemented measures due to an error, claiming that there is no lack of transparency or non-compliance, nor bad faith, it should be noted that a public administration should have established procedures for complying with the obligations set forth in data protection regulations, including responding to the requirements of the supervisory authority within the time granted for that purpose, having to communicate through electronic means and ensuring access by authorized personnel to the electronic notifications sent.

Finally, it is specified that the proposal for resolution transcribed in its Legal Grounds the articles that supported both the obligation breached due to the violation of Article 58.2.d) of the GDPR, as well as the typification and qualification of the infringement. Therefore, the proposal for resolution is clear regarding the specific section of Article 52.2 of the GDPR infringed and does not cite section i) of that article that the accused party infers. However, it is clarified that, although the sanction that may correspond for the facts that motivate the initiation of the procedure and its possible qualification would be an administrative fine, according to Article 83.7 of the GDPR, and the provisions of Article 77.2 of the LOPDGGD transcribed later, due to the category of the subject responsible for the infringement, such sanction is replaced by the declaration of infringement.

IV

Obligation Breached

In accordance with the evidence available, it is considered that the accused party has breached the resolution of the Spanish Agency for Data Protection regarding the measures imposed on it. Therefore, the facts described in the section "Proven Facts" are deemed to constitute an infringement, attributable to the accused party, for violation of Article 58.2.d) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time;"

V

Typification and Qualification of the Infringement

This infringement is typified in Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority pursuant to Article 58, paragraph 2, shall be sanctioned in accordance with paragraph 2 of this article with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total global annual turnover of the preceding financial year, opting for the higher amount."

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"m) Failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred on it by Article 58.2 of Regulation (EU) 2016/679."

VI

Sanction Imposed

Article 83.7 of the GDPR provides the following:

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"Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State."

Furthermore, Article 77 "Regime applicable to certain categories of controllers or processors" of the LOPDGDD provides as follows:

"1. The regime established in this article shall apply to the processing for which the following are responsible or act as processors:

(...)

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that comprise Local Administration.

(...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and, where appropriate, establishing the measures that should be taken to cease the conduct or to correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, where appropriate, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to what is established in the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it.

In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regime that is applicable.

Furthermore, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is proven, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order publication in the corresponding Official State or autonomous Bulletin.

4. The resolutions related to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities."

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Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the DEPARTMENT OF EDUCATION, CULTURE AND SPORTS OF THE GOVERNMENT OF ARAGÓN, with NIF S5011001D, has infringed the provisions of Article 58.2 of the GDPR, an infringement classified in Article 83.6 of the GDPR.

SECOND: TO NOTIFY this resolution to the DEPARTMENT OF EDUCATION, CULTURE AND SPORTS OF THE GOVERNMENT OF ARAGÓN.

THIRD: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be suspended provisionally if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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